

ARTICLE 203
TERMINATION OF PREGNANCY

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§203.01 Definitions.

When used in this title:

- (a) "Termination of pregnancy" means the expulsion or extraction of a conceptus, regardless of the duration of pregnancy, other than a live birth as defined in §201.01(a) and includes "pregnancy loss" as defined in New York State Public Health Law § 4160.
- (b) "Spontaneous termination of pregnancy" means the unplanned termination of a pregnancy, including but not limited to an ectopic pregnancy, miscarriage, still birth, or such a termination associated with a cesarean section, or an operative procedure unrelated to pregnancy resulting in an inadvertent termination.
- (c) "Conceptus" means the product of any termination of pregnancy, regardless of its duration, including a hydatidiform mole, fetal tissue or other evidence of pregnancy recovered by operative or other procedure, but not including a live birth as defined in §201.01(a).
- (d) "Licensed health care practitioner" means a physician or other person licensed or authorized pursuant to the New York State Education Law, or other applicable law, to perform terminations of pregnancy.

§203.03 Reporting terminations of pregnancy.

- (a) When a spontaneous termination of pregnancy occurs in the City it must be reported as follows:
 - (1) If in a hospital or en route thereto, by the person in charge of such hospital or his or her designee; or
 - (2) If elsewhere than in a hospital or en route thereto, by the licensed health care practitioner in attendance at or after such event or by their designee; or
 - (3) If a licensed health care practitioner attends at or after the event elsewhere than in a hospital or en route thereto as an associate of a hospital, by the person in charge of the hospital with which the licensed health care practitioner is associated or by the designee of such person in charge; or
 - (4) If investigated by the office of chief medical examiner, by a medical examiner within that office.

- (b) The person required to report a spontaneous termination of pregnancy pursuant to subdivision (a) of this section must file a certificate of spontaneous termination of pregnancy, including a confidential medical report, for a spontaneous termination of pregnancy; provided that a medical examiner, when required to report pursuant to paragraph (a)(4) of this section, shall file a certificate of spontaneous termination of pregnancy only.
- (c) A certificate of spontaneous termination of pregnancy required by this section shall be filed within 24 hours after the event if a disposition permit issued pursuant to Article 205 of this Code is required or requested, and in all other cases a certificate of spontaneous termination of pregnancy shall be filed with any office maintained and designated by the Department for such purposes within five business days.
- (d)
 - (1) In circumstances where the issuance of a disposition permit pursuant to Article 205 of this Code is requested and a person required to report a spontaneous termination of pregnancy pursuant to subdivision (a) of this section has not filed a report thereof electronically, the requirement of filing a certificate and confidential medical report, if any, required by this section may be fulfilled by delivery of the same immediately upon demand and within the time prescribed by subdivision (c) of this section to a funeral director or undertaker authorized to take charge of the conceptus or to the person in charge of the City mortuary if the remains are to be buried in the City cemetery. Such funeral director, undertaker or person in charge of the City mortuary, or an agent of such funeral director or undertaker registered with the Department pursuant to Article 205 of this Code or a designee of the person in charge of the mortuary, shall then file the certificate within 48 hours following the receipt of the certificate of spontaneous termination of pregnancy.
 - (2) In all other circumstances where the issuance of a disposition permit pursuant to 24 RCNY Health Code Article 205 is requested for a conceptus, a funeral director or undertaker authorized to take charge of the conceptus, or the person in charge of the City mortuary if the remains are to be buried in the City cemetery, registered with the Department pursuant to 24 RCNY Health Code Article 205 or a designee of the person in charge of the mortuary, must report within 24 hours of the termination of pregnancy to the Department only the information required on the forms prescribed by the Board and furnished by the Department.
 - (3) Funeral directors, undertakers, City mortuary personnel, and their agents or designees, must not divulge information in the confidential documents related to disposition of a conceptus except to authorized personnel of the Department.
- (e) All spontaneous terminations of pregnancy occurring at or en route to hospitals or other facilities that report births electronically to the Department pursuant to Article 201 of this Code and all spontaneous terminations of pregnancy reported by the Office of Chief Medical Examiner, must be reported to the Department electronically by means of computer programs specified and provided or otherwise authorized for use by the Department. In circumstances where the issuance of a disposition permit pursuant to Article 205 of this Code is requested, and a person required to report a spontaneous termination of pregnancy pursuant to subdivision (a) of this section files a report thereof electronically, a funeral director or undertaker authorized to take charge of the remains, or the person in charge of the City mortuary when said mortuary files an application for a

disposition permit, shall also file, within 72 hours following the termination of pregnancy, the application for such a permit electronically by means of computer programs specified and provided or otherwise authorized for use by the Department. All hospitals or other facilities that are not required to report spontaneous terminations of pregnancy electronically pursuant to this subdivision may, at their election and upon approval by the Department, implement an electronic reporting system, or continue to report spontaneous terminations of pregnancy on approved paper forms. However, once a hospital or facility has commenced reporting electronically, such hospital or facility may not report on paper forms unless otherwise authorized by the Department.

- (g) The person required to report a spontaneous termination of pregnancy or to file an application for a disposition permit shall provide to the Department information that was required to be reported, but that was not so reported, within five business days of that person receiving the information.
- (h) Upon a request by the Department for additional information that may be necessary to complete, clarify or verify the information required to be reported, the person required to report a spontaneous termination of pregnancy or to file an application for a disposition permit must provide such information to the Department within five business days of the request.

§203.05 Preparation and certification of certificates.

- (a) (1) *Preparation.* Any certificate or confidential medical report required by this Article must be prepared by the same person required to file the same pursuant to § 203.03 but when a spontaneous termination of pregnancy occurs in a hospital or en route thereto, the certificate and confidential medical report, if any, must be prepared by a licensed health care practitioner in attendance, assisting or present at or after the event, by the chief medical officer of the hospital, by the physician in charge of the service on which the pregnant person was treated, or by a designee of the person in charge of the hospital who is trained or approved by the Department. When a licensed health care practitioner attends at or after a spontaneous termination of pregnancy elsewhere than in a hospital or en route thereto, he or she, or a designee of such person who is trained or approved by the Department, must prepare the required certificate and confidential medical report, if any.
- (2) *Certification.* A certificate of spontaneous termination of pregnancy and the confidential medical report must be certified by a physician in attendance or assisting at or after the event, by the Chief Medical Officer of the hospital where the event occurred, or by the physician in charge of the service on which the pregnant person was treated or by a designee of such person who is trained or approved by the Department. When a spontaneous termination of pregnancy certificate is filed by the Office of Chief Medical Examiner, the certificate must be certified by a medical examiner within that office. A person certifying a certificate and confidential medical report, if any, must examine said documents for correctness of the information contained thereon and make necessary changes.
- (b) The certificates specified in § 203.03(b), except for certificates filed electronically pursuant to § 203.03(e), must be prepared on forms prescribed by the Board and furnished by the Department. Computer programs specified and provided or otherwise authorized for use by the Department for electronic filing must be reflective of the forms

prescribed by the Board except to the extent that differences may be necessary or warranted in order to accommodate electronic formatting. The person preparing the certificate must enter all information required by the appropriate form. When a termination of pregnancy occurs in a hospital or en route thereto, the information must be taken from the hospital record of the case. If worksheets are used to prepare certificates of spontaneous termination of pregnancy and confidential medical reports, if any, the worksheets must be ones provided by the Department or in a form approved by the Department. If individuals other than a physician, licensed midwife, registered professional nurse, certified nurse practitioner or registered physician assistant use such worksheets, then such individuals shall be trained or approved by the Department. The person preparing the certificate and confidential medical report, if any, or such person's employer, must retain such worksheets for a period of three years from the date of the event, and must, upon request, make such worksheets available to the Department for inspection.

§203.07 Confidential medical report of spontaneous termination of pregnancy and certificate of induced termination of pregnancy; not subject to inspection.

- (a) The certificate and confidential medical report of a spontaneous termination of pregnancy and the documents submitted pursuant to § 203.03(d)(2) of this Article shall be confidential and not subject to disclosure or to inspection by persons other than the Commissioner or authorized personnel of the Department. The Commissioner or the Commissioner's designee may, however, approve the inspection by others of such medical reports and certificates for scientific purposes or in accordance with federal, New York State, or New York City law.
- (b) Within the context of this section, scientific purposes shall mean epidemiologic surveillance and investigation by a governmental public health agency, research, or the compilation of statistics relating factors bearing on disease incidence, prevalence, mortality or treatment, provided that, in no instance shall personally identifiable information be released.

§203.09 Disposal of conceptus.

Upon request a conceptus may be disposed of in a manner provided for human remains generally and in accordance with a disposition permit issued pursuant to Article 205 of this Code.